Evidence Summary Table: "Home-Owners' Welfare State" (ABC News, 13 Aug 2025)

Issue / Theme	Syllabus Link	Evidence from Article	Legislation / Policy	Example Sentence Applying PEARJJAM
Tax advantages for investors	*Contemporary issues concerning shelter – discrimination in access to housing; the impact of socio-economic status on access to shelter; the role of law reform in addressing inequalities.*	Homeowners—especially investors—gain disproportionately through negative gearing and capital gains tax (CGT) discounts, fuelling inequality.	**Income Tax Assessment Act 1997 (Cth)** – Part 3-1 (Capital Gains Tax), s.8-1 deductions (negative gearing).	*While the Income Tax Assessment Act 1997 (Cth) is accessible and enforceable, its application fails the justice and meeting society's needs criteria, as concessions overwhelmingly benefit the top income deciles, undermining equitable access to shelter.*
Impact of reform on affordability	*Role of law reform in addressing emerging issues; effectiveness of legal and non-legal responses in achieving just outcomes; contemporary issues – affordability of shelter.*	Restricting negative gearing and reducing CGT discounts could improve homeownership rates and affordability.	Proposed amendments to the **Income Tax Assessment Act 1997 (Cth)** via policy platforms (e.g., Australian Greens, ACTU reform proposals).	*Proposed reforms demonstrate responsiveness to societal needs and potential resource efficiency, but the absence of legislative enactment shows poor enforceability and application, leaving structural affordability issues unaddressed.*
Public cost of concessions	*Resource efficiency of legal responses; role of economic policy in affecting access to shelter; tension between individual rights and community needs.*	CGT discount and rental deductions cost ~$49.2 billion annually.	**Annual Appropriation Acts (Cth)** – budget allocations; Treasury costings on tax expenditures.	*From a resource efficiency standpoint, allocating billions to regressive concessions rather than direct housing provision is ineffective, failing both justice and meeting society's needs while being legally entrenched and politically resistant to change.*
Union-led reform push	*Role of law reform and advocacy in changing the law; effectiveness of non-legal responses in influencing legal measures; community organisations and their interaction with the legal system.*	ACTU recommends limiting concessions to one investment property to address intergenerational inequality.	ACTU proposals to amend **Income Tax Assessment Act 1997 (Cth)**; potential referral to **Parliamentary Joint Committee on Housing Affordability**.	*While stakeholder advocacy shows accessibility and community engagement, the lack of legislative uptake reveals limited jurisdictional responsiveness and ineffective protection for vulnerable housing seekers.*
Supply-side government initiatives	*Government initiatives to provide shelter; legal measures to increase supply; effectiveness of legal responses in meeting society's needs.*	Government is implementing "Help-to-Buy" shared equity, Housing Australia Future Fund, and developer incentives.	**Housing Australia Future Fund Act 2023 (Cth)**; **Help to Buy Bill 2023 (Cth)** (proposed); supported by National Housing Accord 2022 (Cth).	*These measures meet the accessibility and justice criteria by supporting low-income buyers, yet their limited scale and delays in fund deployment compromise enforceability and meeting society's needs.*
Structural affordability failure	*Effectiveness of legal and non-legal responses; meeting society's needs in providing shelter; intergovernmental cooperation in addressing shelter needs.*	Government housing supply target (1.2m by 2029) is already ~50k homes behind schedule in first year.	National Housing Supply and Affordability Council functions under **Housing Australia Act 2018 (Cth)**; National Housing Accord agreements with states/territories.	*Although there is a clear jurisdictional mandate and formal application through intergovernmental agreements, persistent shortfalls in supply targets reveal systemic resource inefficiency and an inability to adequately protect the right to shelter.*